TRULEAF FOODS PRIVATE LIMITED

GENERAL TERMS AND CONDITIONS OF SUPPLY

Version 1.0 | Effective date: [31.10.2026]

1. Definitions

1.1 “Agreement” means the contract between Truleaf and the Buyer for the supply of Products, comprising the accepted quotation, proforma invoice, sales order, purchase order accepted by Truleaf, order confirmation, product specification and these Terms and Conditions, as applicable.

1.2 “Buyer” means the person, firm, company or other legal entity purchasing or agreeing to purchase Products from Truleaf.

1.3 “Business Day” means a day other than a Sunday or public/bank holiday at the place where the relevant obligation is to be performed.

1.4 “Confidential Information” means all non-public commercial, technical, operational, financial, product, pricing, customer, supplier and business information disclosed by or on behalf of a Party, whether orally, electronically or in writing.

1.5 “Incoterms” means the Incoterms® rules published by the International Chamber of Commerce, in the edition expressly identified in the Agreement.

1.6 “Products” means the food, agricultural, processed, frozen, preserved, canned, coconut, fruit, vegetable, ingredient or other goods, and any ancillary services, expressly identified in the Agreement.

1.7 “Truleaf” means TRULEAF FOODS PRIVATE LIMITED, a company incorporated under the laws of India, having its registered office at [insert registered office address], and includes any permitted successor or assign.

1.8 “Terms and Conditions” means these General Terms and Conditions of Supply, as amended in accordance with Clause 5.

2. Interpretation

2.1 Capitalised terms have the meanings given in Clause 1 unless the context requires otherwise.

2.2 Words in the singular include the plural and vice versa; references to a person include an individual, company, partnership, LLP, association or other legal entity.

2.3 The words “including”, “include” and “for example” shall be construed without limitation.

2.4 Headings are for convenience only and shall not affect interpretation.

2.5 References to laws include amendments, re-enactments and subordinate legislation in force from time to time.

3. Applicability of these Terms and Conditions

3.1 These Terms and Conditions apply to all quotations, offers, order confirmations, sales, supplies and Agreements under which Truleaf supplies Products to the Buyer, whether within India or for export, unless Truleaf expressly agrees otherwise in writing.

3.2 The Buyer’s purchase terms or other standard conditions are rejected and shall not apply unless expressly accepted in writing by an authorised representative of Truleaf.

3.3 Any deviation or amendment shall apply only to the specific Agreement for which it is expressly agreed in writing by Truleaf.

3.4 These Terms and Conditions also apply where Truleaf engages carriers, warehouses, processors, inspection agencies or other third parties to perform any part of the Agreement, subject to the terms of the relevant third-party contract.

3.5 The Buyer shall ensure that its employees, agents and representatives involved in the Agreement comply with the Buyer’s obligations under these Terms and Conditions.

4. Order of Precedence

4.1 In the event of inconsistency, the following order of precedence shall apply: (a) a written amendment signed by both Parties; (b) the accepted sales order or order confirmation, including expressly agreed product specifications, price, quantity, delivery schedule and Incoterm; (c) any product specification or quality agreement expressly incorporated into the Agreement; and (d) these Terms and Conditions. A Buyer’s purchase order shall not amend these Terms and Conditions merely by being issued or acknowledged.

4.2 For international transactions, the expressly agreed Incoterm, named place or port and Incoterms® edition shall govern the allocation of delivery costs, risks and responsibilities to the extent stated in that rule. Any matter not addressed by the Incoterm shall be governed by the Agreement and these Terms and Conditions.

5. Changes and Additions

5.1 Truleaf may revise these Terms and Conditions from time to time to reflect changes in law, regulatory requirements or its business practices. The revised version shall apply to Agreements entered into after the stated effective date. A revision shall not retrospectively alter an existing Agreement unless required by law or accepted in writing by both Parties.

5.2 Any change to an existing Agreement, including product, quantity, price, packaging, specification, delivery date or destination, shall be effective only when confirmed in writing by authorised representatives of both Parties.

5.3 The Buyer may not rely on any oral statement or informal communication as an amendment unless confirmed in writing by Truleaf.

6. Price Quotes and Agreements

6.1 Unless expressly stated otherwise, quotations and offers issued by Truleaf are invitations to place an order and are valid only for the period stated in the quotation. If no validity period is stated, the quotation may be withdrawn or revised before written acceptance by Truleaf.

6.2 An Agreement is formed when Truleaf issues written order confirmation, accepts the Buyer's order in writing, or otherwise confirms acceptance in a manner permitted by applicable law.

6.3 Any acceptance by the Buyer containing additional or different terms shall constitute a counter-offer and shall not bind Truleaf unless expressly accepted in writing.

6.4 Truleaf may decline an order, in whole or in part, where stock, sourcing, regulatory, credit, production, logistics or other reasonable commercial constraints prevent acceptance.

7. Third Parties

7.1 Truleaf may engage suppliers, growers, manufacturers, processors, packers, laboratories, freight forwarders, carriers, customs brokers, warehouses and other service providers for sourcing, handling, storage, testing or delivery of Products.

7.2 Where third-party services or costs are included in the Agreement or are reasonably incurred for the Buyer's requested delivery arrangements, the applicable charges shall be payable by the Buyer as stated in the Agreement or otherwise notified and supported by reasonable records.

7.3 Truleaf shall remain responsible for obligations expressly undertaken by it under the Agreement, but shall not be responsible for independent acts of carriers or other third parties beyond the responsibility allocated to Truleaf under the agreed Incoterm or applicable law.

8. Obligations of the Buyer

8.1 The Buyer shall provide complete and accurate orders, specifications, forecasts, delivery instructions, destination details, import requirements and other information reasonably required for performance of the Agreement.

8.2 The Buyer shall provide all documents and information in sufficient time for Truleaf to comply with applicable food, customs, tax, export, import, labelling and other regulatory requirements relevant to the transaction.

8.3 The Buyer warrants that information and instructions supplied by it are accurate, complete, lawful and not misleading, and that it has all approvals and authority required to purchase, import, receive, store, process, market and sell the Products.

8.4 The Buyer shall ensure that Products are transported, unloaded, stored, handled and used in accordance with the product specification, label instructions, applicable food-safety requirements and good industry practice after the risk has passed to the Buyer.

8.5 The Buyer shall promptly notify Truleaf of any matter that may affect performance, acceptance, import clearance, payment or lawful sale of the Products.

9. Prices and Price Changes

9.1 Unless expressly stated otherwise, prices are exclusive of GST and other applicable taxes, duties, levies, cess, fees and statutory charges, which shall be charged in addition where legally applicable.

9.2 Unless expressly included in the Agreement, prices exclude packaging beyond the stated product packaging, freight, insurance, loading, unloading, storage, inspection, testing, customs clearance, port charges, demurrage and other delivery-related costs.

9.3 Prices are based on the cost, availability, exchange rate, freight, packaging, raw material, energy, labour, tax and regulatory conditions prevailing when the quotation is issued. Where such factors materially change before dispatch or during an agreed call-off period, Truleaf may propose a corresponding price adjustment. Any adjustment to an accepted fixed-price order shall require the Buyer's written agreement, except for taxes or statutory charges imposed by law.

9.4 For international supplies, currency, bank charges, exchange-rate basis, payment method and responsibility for duties and taxes shall be as stated in the Agreement.

9.5 Demurrage, detention, container rent, waiting charges, re-delivery, storage or other additional costs caused by the Buyer's delay, incorrect instructions, failure to take delivery or failure to provide documents shall be borne by the Buyer, to the extent supported by reasonable records.

10. Payment Terms and Other Conditions

10.1 The Buyer shall pay invoices within the payment period stated in the Agreement or invoice. If no period is stated, payment shall be due within [15] calendar days from the invoice date.

10.2 All payments shall be made in the invoiced currency, without set-off, counterclaim or deduction, except deductions required by law. Where tax is required to be withheld, the Buyer shall provide the applicable withholding certificate within the statutory period.

10.3 If payment is overdue, Truleaf may charge interest at [1.5%] per month or the maximum rate permitted by applicable law, whichever is lower, from the due date until actual payment, together with reasonable recovery costs, subject to applicable law.

10.4 Truleaf may suspend further supplies, withhold dispatch or require advance payment or reasonable security if the Buyer fails to pay an amount when due or if there are reasonable grounds to believe that the Buyer may not meet its payment obligations.

10.5 Payments received may be appropriated first towards recovery costs and interest and then towards the oldest outstanding principal amount, unless mandatory law requires otherwise.

10.6 The Buyer shall notify Truleaf in writing of any invoice dispute within seven (7) days of receipt, specifying the disputed amount and reasons. The undisputed portion shall be paid by the due date. Failure to raise a timely, reasoned dispute shall not waive rights that cannot lawfully be waived.

11. Insurance

11.1 Unless expressly agreed otherwise in writing or required by the applicable Incoterm, Truleaf is not obliged to arrange insurance for the Products.

11.2 The Party bearing transit risk under the Agreement and applicable Incoterm shall arrange appropriate insurance for the relevant transit or storage period. The Buyer shall maintain adequate insurance after risk transfers to it.

11.3 Where Truleaf agrees to arrange insurance on the Buyer's behalf, the scope, insured value, deductible, premium and beneficiary shall be stated in the Agreement. Insurance does not enlarge Truleaf's liability beyond the Agreement or applicable law.

12. Delivery Time

12.1 Delivery dates and lead times are estimates unless the Agreement expressly identifies a date as a guaranteed delivery date and states the consequences of delay. Truleaf shall use commercially reasonable efforts to meet the agreed schedule.

12.2 Delivery time shall be extended to the extent performance is delayed by the Buyer, its nominated carrier, any authority, customs clearance, port congestion, shortage of transport, supplier delay, regulatory hold or other event beyond Truleaf's reasonable control.

12.3 Unless expressly agreed otherwise, delay alone shall not entitle the Buyer to cancel an order, reject conforming Products or claim indirect or consequential loss. This clause does not exclude remedies that cannot lawfully be excluded.

13. Delivery and Acceptance

13.1 Delivery shall take place at the place, date and manner specified in the Agreement and shall be interpreted in accordance with the agreed Incoterm, where applicable.

13.2 The Buyer shall ensure that its receiving facility, personnel, equipment and nominated carrier are ready to receive the Products at the agreed time and place.

13.3 The Buyer or its representative shall check the apparent condition, package count, seals and visible damage at delivery and record any apparent shortage or damage on the delivery receipt, consignment note or carrier document before signing, where reasonably possible.

13.4 A delivery receipt or transport document signed without reservation shall be prima facie evidence of the apparent number of packages and external condition received, but shall not by itself waive a claim for a latent defect or non-conformity that could not reasonably have been identified at delivery.

13.5 Truleaf may make delivery in instalments where agreed or where reasonably necessary for operational reasons. Each instalment may be invoiced separately. Failure of one instalment shall not automatically invalidate other instalments.

13.6 If the Buyer fails or refuses to take delivery when properly tendered, Truleaf may arrange reasonable storage or re-delivery at the Buyer's risk and cost, and may invoice the Products in accordance with the Agreement, subject to applicable law.

13.7 Risk of loss or damage shall pass in accordance with the agreed Incoterm or, for domestic supplies without an Incoterm, upon delivery to the Buyer or its nominated carrier at the agreed delivery point, unless the Agreement expressly states otherwise.

13.8 If the Buyer requests a change in delivery destination, schedule, carrier or delivery method after dispatch arrangements have commenced, the Buyer shall bear the resulting reasonable additional costs and any resulting delay.

14. Quality and Inspection

14.1 Products shall conform in all material respects to the product specification expressly agreed in writing for the relevant Agreement. Where no detailed specification is agreed, Products shall conform to the description in Truleaf's accepted quotation or order confirmation and applicable mandatory legal requirements.

14.2 Natural agricultural and food products may exhibit reasonable variations in colour, size, shape, texture, moisture, flavour, appearance or other characteristics due to crop, season, origin, variety and processing, provided the Products remain within the agreed specification and applicable legal requirements.

14.3 Where supply is based on an approved sample, the sample shall be representative of the agreed quality, subject to normal batch and natural-product variation and any written tolerance agreed by the Parties.

14.4 The Buyer shall inspect Products promptly after delivery and notify Truleaf in writing of visible defects, shortages or transport damage within [48] hours of delivery, with photographs, batch details and supporting documents where available.

14.5 A claim relating to a latent defect that could not reasonably have been identified on ordinary receipt inspection shall be notified promptly after discovery and, in any event, within the product's stated shelf life and storage conditions, unless a different period is agreed in writing or mandatory law applies.

14.6 The Buyer shall preserve representative samples, packaging, labels and relevant records and shall not destroy, rework, process, repack, relabel or dispose of disputed Products without giving Truleaf a reasonable opportunity to inspect, except where necessary to protect health, safety or comply with law.

14.7 Truleaf may request independent testing by an appropriately accredited or recognised laboratory. The Parties shall agree the laboratory and test method where practicable. The costs shall be borne by the Party whose position is not supported by the test result, unless otherwise agreed.

14.8 Minor variations within the agreed specification or normal tolerances shall not constitute grounds for rejection. Products that materially fail to meet the agreed specification or mandatory legal requirements may be subject to the remedies in Clause 22.

14.9 No inspection, testing, payment or acceptance shall relieve either Party from obligations that cannot lawfully be waived.

15. Call-Off Deliveries

15.1 Where the Parties agree a call-off arrangement, the Agreement shall state the total quantity, call-off schedule, minimum call-off quantity, final call-off date, storage responsibility and any applicable price review mechanism. If these matters are not stated, the Parties shall agree them in writing before the first call-off.

15.2 If the Buyer fails to call off the agreed quantity by the final call-off date, Truleaf may issue a written notice requiring the Buyer to take delivery within a reasonable period. If the Buyer fails to do so, Truleaf may store, resell or otherwise deal with the Products and recover reasonable resulting costs and losses, subject to applicable law.

16. Refusal by Carriers

16.1 Where the Buyer nominates or controls a carrier, the Buyer shall ensure that the carrier accepts the shipment and records any reservation relating to package count, weight, seals or visible condition. Truleaf shall not be responsible for a carrier's refusal to record a reservation or sign a document, except to the extent caused by Truleaf's breach or negligence.

16.2 Any carrier refusal, short delivery or damage shall be notified to Truleaf promptly, and the Buyer shall provide the relevant transport documents, photographs and other evidence reasonably required to investigate the matter.

17. Packaging

17.1 Products shall be packed in the manner stated in the Agreement or product specification. Packaging shall be suitable for the agreed product, transport mode and intended storage conditions, subject to the requirements communicated by the Buyer in sufficient time.

17.2 The Buyer shall provide accurate artwork, label text, destination-market requirements and packaging instructions where these are Buyer-specific. The Buyer is responsible for errors in Buyer-supplied artwork or instructions, except to the extent Truleaf has expressly undertaken to verify them.

17.3 Where the Buyer requires special packaging, pallets, labels, barcodes, certificates or other non-standard materials, the associated costs and minimum order quantities shall be agreed in writing.

17.4 Returnable packaging, pallets or containers shall be returned in accordance with the Agreement. If no return arrangement is agreed, packaging is non-returnable and its cost is included or charged as stated in the quotation.

18. Returns

18.1 Products may not be returned without Truleaf's prior written authorisation. Any authorised return shall be made in accordance with Truleaf's written instructions and at the risk and cost allocated in the Agreement.

18.2 Products that have been opened, processed, altered, repacked, relabelled, improperly stored, damaged after risk transfer or handled contrary to the stated storage conditions shall not be eligible for return, except where required by law or where the condition is attributable to Truleaf.

18.3 Perishable, frozen, chilled or short-shelf-life Products shall not be returned unless Truleaf expressly authorises the return or a mandatory legal requirement applies.

19. Title and Security

19.1 Title to Products shall pass to the Buyer upon the later of (a) payment in full of the price and all other amounts due for those Products, and (b) delivery in accordance with the Agreement, to the extent retention of title is recognised and enforceable under applicable law.

19.2 Until title passes, the Buyer shall keep unpaid Products identifiable, properly stored and insured, and shall not pledge or create any security interest over them.

19.3 Where legally permissible, if the Buyer fails to pay an overdue amount after written notice, Truleaf may require the Buyer to make unpaid Products available for collection, without prejudice to other lawful remedies.

19.4 Nothing in this Clause shall authorise entry onto premises without consent or other lawful authority, or permit recovery contrary to applicable insolvency, secured-transactions or other mandatory law.

19.5 Any security, pledge, charge or other collateral arrangement shall be effective only if separately documented and perfected in the manner required by applicable Indian law.

20. Export and International Supply

20.1 For export transactions, the Agreement shall specify the destination country, named place or port, Incoterm and edition, shipment window, currency, payment mechanism, responsibility for export and import clearance, and documents to be supplied.

20.2 Truleaf shall be responsible for export documentation and formalities allocated to the seller under the agreed Incoterm and applicable Indian law. The Buyer shall be responsible for import licences, registrations, product approvals, local-language labels, customs clearance, duties, taxes and destination-market compliance allocated to the Buyer.

20.3 The Buyer shall verify before placing the order that the Products may lawfully be imported, marketed and used in the destination country and shall provide applicable import specifications and regulatory requirements in writing.

20.4 Certificates of origin, health certificates, phytosanitary certificates, organic certificates, inspection certificates, laboratory reports and other documents shall be supplied only where expressly agreed and available from the competent authority or issuing body. Any additional certificate, testing or legalisation requested by the Buyer may be charged separately.

20.5 Any claim that Products meet a destination-market standard or certification scheme shall be limited to the specific standard, scope, validity period and supporting evidence expressly identified in the Agreement. Truleaf does not warrant that a certificate issued to an upstream supplier or facility automatically covers the Buyer, its facility or its intended use.

20.6 The Parties shall cooperate in good faith with customs, food-safety and other competent authorities. The Buyer shall promptly notify Truleaf of any detention, rejection, alert, border notification or regulatory action affecting the Products.

21. Suspension

21.1 Truleaf may suspend performance, dispatch or further supplies by written notice if: (a) the Buyer fails to pay an amount when due; (b) the Buyer materially breaches the Agreement; (c) the Buyer fails to provide information, documents, licences or security reasonably required for performance; (d) there are reasonable grounds to believe the Buyer may be unable to pay or perform; or (e) performance would, in Truleaf's reasonable opinion, breach applicable law or expose either Party to a material regulatory or safety risk.

21.2 Suspension shall continue only for so long as the relevant cause remains unresolved. Truleaf shall resume performance when the cause is remedied, subject to product availability and a reasonable revised schedule.

21.3 Suspension shall not waive any accrued payment obligation or other right of Truleaf.

22. Complaints, Remedies and Substitute Transactions

22.1 The Buyer shall submit claims in accordance with the inspection and notification periods in Clause 14 and shall provide sufficient particulars to identify the Agreement, product, batch, quantity, nature of the alleged non-conformity and supporting evidence.

22.2 If Truleaf confirms that Products materially fail to meet the agreed specification or mandatory legal requirements due to a matter attributable to Truleaf, Truleaf may, at its option and subject to applicable law: (a) replace the affected Products; (b) supply the missing quantity; (c) repair or reprocess where safe and lawful; or (d) issue a credit or refund for the affected Products.

22.3 The remedies in Clause 22.2 are subject to the Buyer having complied with storage, handling, traceability, notification and mitigation obligations. They do not apply to defects caused by the Buyer, carrier after risk transfer, improper storage, misuse, normal deterioration or events outside Truleaf's responsibility.

22.4 The Buyer shall not arrange a substitute purchase at Truleaf's expense or debit Truleaf for third-party purchases without Truleaf's prior written consent, except to the extent such restriction is prohibited by applicable law.

22.5 A complaint shall not entitle the Buyer to withhold payment for undisputed Products or undisputed invoice amounts.

23. Limitation Period

23.1 Subject to mandatory statutory limitation periods and rights that cannot lawfully be restricted, any contractual claim arising from an Agreement shall be notified in writing as soon as reasonably practicable after the Buyer becomes aware of the facts giving rise to it.

23.2 Nothing in these Terms and Conditions shall extend or shorten a limitation period imposed by the Limitation Act, 1963 or other mandatory applicable law.

24. Warranties

24.1 Truleaf warrants that, at the time risk passes under the Agreement, the Products will materially conform to the agreed written specification and comply with mandatory Indian legal requirements applicable to Truleaf's supply obligations.

24.2 Any additional warranty, certification, organic status, country-of-origin claim, sustainability claim, shelf-life commitment or destination-market compliance undertaking shall apply only if expressly stated in the Agreement and supported by the relevant records or certification.

24.3 Where Truleaf sources Products from third-party growers, processors or manufacturers, any pass-through warranty shall be limited to the extent such warranty is lawfully available to Truleaf, without reducing any non-excludable obligation of Truleaf.

24.4 No warranty applies to deterioration or defects caused after risk transfer by improper transport, storage, temperature abuse, handling, processing, repacking, relabelling, contamination or use contrary to instructions, or by normal shelf-life progression.

24.5 Except for express warranties in the Agreement and warranties that cannot lawfully be excluded, all other conditions and warranties are excluded to the maximum extent permitted by applicable law.

25. Notice of Termination

25.1 Either Party may terminate an Agreement for convenience only if the Agreement expressly permits it or the other Party agrees in writing. Any agreed notice period, cancellation charge and treatment of committed or customised Products shall be as stated in the Agreement.

25.2 Either Party may terminate an Agreement by written notice if the other Party commits a material breach and, where the breach is capable of remedy, fails to remedy it within thirty (30) days after receiving written notice specifying the breach.

25.3 Truleaf may suspend or terminate an Agreement with immediate effect by written notice if the Buyer: (a) fails to pay an overdue amount after notice; (b) becomes insolvent or enters liquidation, administration or a similar

process, subject to applicable insolvency law; (c) ceases or threatens to cease material business operations; (d) uses or resells Products unlawfully; or (e) requests or requires performance that would breach applicable law.

25.4 A Party may terminate the affected Agreement if a Force Majeure event continues for more than sixty (60) consecutive days and materially prevents performance, by written notice to the other Party.

25.5 Termination shall not affect rights, remedies, payment obligations or liabilities accrued before the effective date of termination.

26. Consequences of Termination

26.1 Upon termination, all undisputed amounts due for Products delivered, services performed and costs properly incurred up to the termination date shall become immediately payable, subject to applicable law.

26.2 The Buyer shall pay reasonable and evidenced costs incurred by Truleaf for raw materials, work in progress, finished Products, packaging, committed freight or non-cancellable third-party commitments specifically procured for the Agreement, to the extent the Agreement is terminated due to the Buyer's breach or cancellation.

26.3 Each Party shall return or securely destroy the other Party's Confidential Information on request, subject to lawful record-retention requirements.

26.4 Clauses concerning payment, title, confidentiality, intellectual property, liability, dispute resolution and any other provision intended by its nature to survive shall continue after termination.

27. Liability and Indemnity

27.1 Each Party shall be responsible for direct loss or damage caused by its breach of the Agreement, negligence, wilful misconduct or violation of applicable law, subject to the limitations in this Clause and mandatory law.

27.2 To the maximum extent permitted by law, neither Party shall be liable to the other for indirect, incidental, special, punitive or consequential loss, including loss of profit, loss of business, loss of anticipated savings or loss of goodwill, except where such loss is payable to a third party under an indemnified claim or cannot lawfully be excluded.

27.3 Subject to Clause 27.4, Truleaf's aggregate liability arising out of or in connection with an Agreement shall not exceed the net amount actually paid or payable for the specific affected Products under that Agreement.

27.4 The limitations in this Clause shall not apply to liability that cannot be limited under applicable law, including liability arising from fraud or wilful misconduct, or to death or personal injury to the extent caused by negligence where such limitation is prohibited by law.

27.5 The Buyer shall indemnify Truleaf against third-party claims, losses, penalties and reasonable costs to the extent arising from: (a) the Buyer's breach of the Agreement; (b) the Buyer's storage, handling, processing, relabelling, marketing or resale of Products after risk transfer; (c) Buyer-supplied artwork, specifications or instructions; or (d) the Buyer's violation of applicable law.

27.6 A Party seeking indemnity shall promptly notify the other Party of the claim, provide reasonable cooperation and allow the indemnifying Party to participate in the defence. No settlement imposing liability or admission on the indemnified Party may be made without its prior written consent.

28. Force Majeure

28.1 A Party shall not be liable for delay or failure to perform to the extent caused by an event beyond its reasonable control which it could not reasonably prevent or overcome, including natural disasters, flood, fire, epidemic or pandemic, war, terrorism, civil unrest, strikes, lockouts, government action, embargo, sanctions, port closure, transport disruption, shortage of containers, power failure, crop failure, unusual weather, supplier failure, cyber incident or interruption of utilities.

28.2 The affected Party shall notify the other Party as soon as reasonably practicable, describe the impact and use commercially reasonable efforts to mitigate the effects and resume performance.

28.3 The affected obligations shall be suspended for the duration and to the extent of the Force Majeure event. Payment obligations for Products already delivered shall not be excused.

28.4 If the event continues for more than sixty (60) consecutive days and materially prevents performance, either Party may terminate the affected Agreement under Clause 25.4 without liability for the unperformed portion, subject to accrued rights and costs properly incurred.

29. Intellectual Property Rights

29.1 Each Party retains ownership of its pre-existing trademarks, trade names, logos, designs, specifications, know-how, documents and other intellectual property.

29.2 No right or licence to use Truleaf's name, brand, logo, product images or marketing materials is granted except with Truleaf's prior written consent.

29.3 Where the Buyer provides artwork, labels, designs or materials, the Buyer warrants that it owns or is authorised to use them and shall indemnify Truleaf against third-party claims arising from their use as instructed.

29.4 Any intellectual property specifically developed under a separate paid development or private-label agreement shall be owned and licensed as stated in that agreement.

30. Confidentiality

30.1 Each Party shall keep the other Party's Confidential Information confidential and use it only for performing or exercising rights under the Agreement.

30.2 A Party may disclose Confidential Information to its employees, professional advisers, auditors, insurers, financiers, service providers and competent authorities on a need-to-know basis, provided disclosure is lawful and appropriate confidentiality obligations apply.

30.3 Confidentiality obligations do not apply to information that is public other than through breach, already lawfully known, independently developed without use of the Confidential Information, or lawfully received from a third party without confidentiality restriction.

30.4 If disclosure is required by law, court or competent authority, the receiving Party shall, where legally permitted, give prior notice and disclose only what is legally required.

30.5 The obligations in this Clause shall continue for five (5) years after termination, and for trade secrets for so long as they remain protected as trade secrets under applicable law.

31. Food Safety, Traceability and Product Recall

31.1 Each Party shall comply with food-safety, hygiene, storage, transport, traceability, labelling and other requirements applicable to the activities it performs and the jurisdiction in which it operates.

31.2 Truleaf shall maintain records reasonably required by applicable law and its food-safety or quality systems for the Products supplied by it, subject to the scope of its role as trader, exporter, processor or manufacturer in the relevant transaction.

31.3 The Buyer shall maintain appropriate batch traceability, storage and distribution records and shall ensure that Products are handled under the conditions stated on the label, specification or accompanying documents.

31.4 If either Party becomes aware of a credible food-safety concern, contamination, regulatory non-compliance, withdrawal, recall or authority alert relating to Products, it shall notify the other Party without undue delay and cooperate in investigation, containment and corrective action.

31.5 The Parties shall cooperate in any withdrawal or recall required by a competent authority or reasonably necessary to protect consumers. Costs shall be allocated according to the cause of the event and each Party's responsibility, subject to applicable law.

31.6 Neither Party shall make a public statement identifying the other Party in connection with a recall or safety incident without prior consultation, unless required by law or a competent authority.

32. Compliance with Laws, Trade Controls and Ethical Business

32.1 Each Party shall comply with laws and regulations applicable to its performance, including, as relevant, the Food Safety and Standards Act, 2006 and regulations made thereunder, Legal Metrology laws, GST laws, the

Customs Act, 1962, Foreign Trade (Development and Regulation) Act, 1992, Foreign Trade Policy, FEMA and applicable export-control, sanctions, anti-bribery, labour and environmental laws.

32.2 The Buyer shall not export, re-export, transfer or use Products in breach of applicable sanctions, trade restrictions, end-use restrictions or destination-country laws.

32.3 Each Party shall not offer, promise, give, request or accept any improper payment or advantage in connection with the Agreement.

32.4 Where the Buyer requires organic, sustainability, social compliance or other certification claims, the scope, certification body, validity, chain-of-custody requirements and supporting documents shall be expressly agreed. No claim shall be made beyond the verified scope.

32.5 The Buyer shall promptly provide information reasonably requested for lawful customs, export-control, sanctions, anti-money laundering or regulatory checks.

33. Final Provisions

33.1 If any provision of these Terms and Conditions is held invalid or unenforceable, the remaining provisions shall continue in effect. The Parties shall seek in good faith to replace the invalid provision with a valid provision that most closely reflects its commercial intent.

33.2 The Buyer may not assign or transfer an Agreement or any rights or obligations under it without Truleaf's prior written consent. Truleaf may assign an Agreement to an affiliate or successor as part of a bona fide restructuring, merger or sale of business, provided this does not materially reduce the Buyer's rights.

33.3 No failure or delay by a Party in exercising a right shall operate as a waiver of that right. A waiver is effective only if made in writing.

33.4 The Agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes prior discussions or correspondence, except for any written representation expressly incorporated into the Agreement.

33.5 Notices shall be sent by hand, recognised courier or email to the addresses stated in the Agreement or otherwise notified in writing. Email notices shall be deemed received when no delivery failure notification is received, provided that notices of termination or material breach are also sent by courier or other verifiable method.

33.6 The Agreement may be executed electronically and in counterparts to the extent recognised under applicable Indian law.

33.7 These Terms and Conditions are governed by the laws of India.

34. Dispute Resolution and Jurisdiction

34.1 The Parties shall first attempt to resolve any dispute through good-faith discussions between their authorised representatives within thirty (30) days after written notice of the dispute.

34.2 If the dispute is not resolved, it shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, as amended. The arbitration shall be conducted by a sole arbitrator mutually appointed by the Parties. If the Parties cannot agree on the arbitrator, appointment shall be made in accordance with the Act.

34.3 The seat and legal place of arbitration shall be [Chennai, Tamil Nadu, India]. The language of arbitration shall be English. The award shall be final and binding, subject to applicable law.

34.4 Subject to the arbitration agreement, courts at [Chennai, Tamil Nadu] shall have exclusive jurisdiction over applications and proceedings arising out of or relating to the Agreement, to the extent legally permissible.

34.5 For international sale of goods, the United Nations Convention on Contracts for the International Sale of Goods (CISG) shall [apply / not apply] only if the Parties expressly select the applicable option in the Agreement. If no option is selected, its applicability shall be determined in accordance with applicable law.

Schedule 1 – Order / Transaction Particulars

Seller
Buyer legal name
Buyer billing / delivery address
Product and grade
Specification / quality parameters
Quantity and tolerance
Packaging and labelling
Price and currency
GST / other taxes
Payment terms / bank charges
Delivery date / shipment window
Delivery place / port
Incoterm and edition
Insurance responsibility
Required documents
Destination market / import requirements
Special terms

Schedule 2 – Buyer Declaration

2.1 The Buyer confirms that it is duly incorporated or legally constituted, has authority to enter into the Agreement and has obtained all approvals required for the purchase and receipt of the Products.

2.2 The Buyer confirms that all specifications, label instructions, destination-market requirements, import requirements and delivery information supplied to Truleaf are accurate and complete.

2.3 The Buyer confirms that it will store, handle, transport, process, market and sell the Products in compliance with applicable law and the product's specified conditions.

2.4 The Buyer shall promptly inform Truleaf of any regulatory inquiry, detention, rejection, recall or food-safety concern relating to the Products.

Implementation Notes – Complete Before Issue

- Insert Truleaf's exact registered office address, CIN, official email and authorised signatory details on the cover and in the company's execution/approval records.
- Confirm the default payment period, overdue interest rate, visible-defect notification period and latent-defect claim process with management and legal counsel.
- Confirm whether Chennai, Tamil Nadu is the preferred arbitration seat and court jurisdiction. Do not leave bracketed options unresolved in the issued version.
- For export orders, always state the Incoterm, named place/port and Incoterms® edition in the accepted quotation or order confirmation. Do not use an Incoterm without a precise named place/port.
- Have an Indian commercial lawyer review enforceability, especially retention of title, limitation of liability, termination, interest, arbitration, CISG selection and consumer/food-safety obligations.

- This document is drafted as Truleaf's seller-side General Terms and Conditions of Supply. It is not a buyer-side procurement document and is not a word-for-word reproduction of the Tradin document.

Indicative Indian Legal Framework

- Indian Contract Act, 1872 – formation, performance, breach and remedies for contracts.
- Sale of Goods Act, 1930 – sale of goods, transfer of property, conditions, warranties and seller/buyer rights.
- Food Safety and Standards Act, 2006 and applicable FSSAI regulations – food business, food safety, standards, labelling and import requirements, as applicable to Truleaf's role and Products.
- Central Goods and Services Tax Act, 2017 and applicable State/Integrated GST laws – invoicing, tax treatment and compliance.
- Customs Act, 1962; Foreign Trade (Development and Regulation) Act, 1992; Foreign Trade Policy and FEMA – export/import transactions and foreign exchange matters, as applicable.
- Legal Metrology Act, 2009 and applicable rules – packaged commodity declarations, where applicable.
- Arbitration and Conciliation Act, 1996 – arbitration agreement and proceedings.
- Limitation Act, 1963 – statutory limitation periods.
- Information Technology Act, 2000 and applicable data-protection law – electronic records, communications and personal data, where applicable.